

		an agreement to which this chapter applies shall be determined by a court, rather than an arbitrator, irrespective of whether the party resisting arbitration challenges the arbitration agreement specifically or in conjunction with other terms of the contract containing such agreement, and irrespective of whether the agreement purports to delegate such determinations to an arbitrator.” (9 U.S.C.A. § 402.) The court agrees with Plaintiff. The plain language of 9 U.S.C. § 402 expressly states that “no predispute arbitration agreement or predispute joint-action waiver shall be valid or enforceable with respect to a case which is filed under Federal, Tribal, or State law and relates to the sexual assault dispute or the sexual harassment dispute.” (9 U.S.C.A. § 402, subd. (a).) Each of Plaintiff’s six causes of action relate to the sexual harassment Plaintiff claims she has and continues to experience during her employment with Defendant. Defendant points to other trial court cases wherein some causes of action were sent to arbitration while the sexual harassment claims were stayed. This case is different than those cited by Defendant in that Plaintiff’s claims are based solely on sexual harassment. Plaintiff does not allege any wrongful conduct based on any other protected characteristics or activities under FEHA, such as disability or race. Plaintiff’s allegations are limited to those relating to the sexual harassment dispute and fall squarely within the protection of 9 U.S.C. § 402. Accordingly, the Motion to Compel Arbitration is DENIED. Plaintiff’s request for sanctions is DENIED. Defendant to file an answer or responsive pleading within 10 days. The case management conference is continued to 10/26/2023 at 1:30 p.m. <i>Plaintiff to give notice.</i>
59	Ruiz vs. Nissan North America, Inc. Case No. 30-2022-01266638	Plaintiff Jesus Ruiz (“Plaintiff”) petitions the court pursuant to Code of Civil Procedure section 1281.2 and 1281.6 for an order to compel Defendant Nissan North America, Inc.

		("Defendant") to arbitrate in an arbitration forum other than AAA or with one of the six arbitrators offered by Plaintiff. Code of Civil Procedure section 1281.2 states: "On petition of a party to an arbitration agreement alleging the existence of a written agreement to arbitrate a controversy and that a party to the agreement refuses to arbitrate that controversy, the court shall order the petitioner and the respondent to arbitrate the controversy if it determines that an agreement to arbitrate the controversy exists." (Code Civ. Proc., § 1281.2.) Pursuant to Code of Civil Procedure section 1281.6: "If the arbitration agreement provides a method of appointing an arbitrator, that method shall be followed. If the arbitration agreement does not provide a method for appointing an arbitrator, the parties to the agreement who seek arbitration and against whom arbitration is sought may agree on a method of appointing an arbitrator and that method shall be followed. In the absence of an agreed method, or if the agreed method fails or for any reason cannot be followed, or when an arbitrator appointed fails to act and his or her successor has not been appointed, the court, on petition of a party to the arbitration agreement, shall appoint the arbitrator. When a petition is made to the court to appoint a neutral arbitrator, the court shall nominate five persons from lists of persons supplied jointly by the parties to the arbitration or obtained from a governmental agency concerned with arbitration or private disinterested association concerned with arbitration. The parties to the agreement who seek arbitration and against whom arbitration is sought may within five days of receipt of notice of the nominees from the court jointly select the arbitrator whether or not the arbitrator is among the nominees. If the parties fail to select an arbitrator within the five-day period, the court shall appoint the arbitrator from the nominees." (Code Civ. Proc., § 1281.6.) The parties agree that the Arbitration Provision contains the following language:
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		"Any claim or dispute is to be arbitrated by a single arbitrator on an individual basis and not as a class action. You expressly waive any right you may have to arbitrate a class action. You may choose the American Arbitration Association, 1633 Broadway, 10th Floor, New York, New York 10019 (www.adr.org), or any other organization to conduct the arbitration subject to our approval." The parties disagree regarding how this paragraph should be interpreted. Plaintiff argues that the Provision gives Plaintiff two options: (1) arbitrate with AAA or (2) arbitrate with any other organization subject to Defendant's approval. Defendant argues that arbitration must take place with AAA unless it approves another forum. The court agrees with Plaintiff. Defendant's argument that arbitration must take place with AAA unless Defendant chooses otherwise ignores the plain language of the agreed upon Arbitration Provision. The word "unless" is not contained in the paragraph above. Likewise, the provision does not state that arbitration "must" take place with AAA. (Mijares v. Orange County Employees' Retirement System (2019) 32 Cal.App.5th 316, 329 [""Courts routinely construe the word 'may' as permissive and words like 'shall' or 'must' as mandatory."].) Rather the paragraph above states that Plaintiff may choose (1) the American Arbitration Association, 1633 Broadway, 10th Floor, New York, New York 10019 (www.adr.org), or (2) any other organization to conduct the arbitration subject to our approval." Under the express language of the Arbitration Provision, Plaintiff is given two choices. Here, Plaintiff seeks to exercise option 2 and therefore THE COURT ORDERS THAT Defendant and Plaintiff must agree upon "any other organization to conduct the arbitration." If the parties are unable to agree upon "any other organization to conduct the arbitration," the court will appoint an arbitrator pursuant to the procedures set forth in Code of Civil Procedure section 1281.6. If the parties are unable to agree upon an arbitrator, the parties are ordered to submit a joint statement no later than 20 days containing a list of proposed arbitrators and the court will
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		"nominate five persons from lists of persons supplied jointly by the parties to the arbitration" pursuant to Code of Civil Procedure section 1281.6. Plaintiff's request for judicial notice is DENIED as the court declines to consider all new points, arguments, and evidence presented for the first time on reply. (<i>Balboa Ins. Co. v. Aguirre</i> (1983) 149 Cal.App.3d 1002, 1010; <i>Jay v. Mahaffey</i> (2013) 218 Cal.App.4th 1522, 1537-1538.) The ADR Review Hearing is continue to 10/26/2023 at 1:30 p.m. Plaintiff to give notice.
60	Hale vs. Hyundai Motor America Case No. 30-2020-01129492	Plaintiff MARCIA G. HALE ("Plaintiff") will, and hereby does, move for an Order for: (1) payment by Hyundai of \$5,000 in previously-ordered, accrued sanctions within ten (10) calendar days of the Court's entry of its order granting this Motion: and (2) (a) terminating sanctions, specifically, striking Hyundai's Answer filed in this action or entering default judgment entered against Hyundai and in favor of Plaintiff in an amount to be proved at a default prove-up hearing; or, in the alternative (b) a fourth order compelling Hyundai to comply with the Court's March 18, 2021, April 22, 2022, and April 6, 2023 Orders and for prospective sanctions of \$1000 per day for each day that Hyundai does not comply. Plaintiff brings this Motion is made pursuant to California Code of Civil Procedure Sections 128(a)(4) and 2023.030(d)(1) & (4). Code Civ. Proc. §128(a)(4) provides, "Every court shall have the power to... compel obedience to its judgments, orders, and process, and to the orders of a judge out of court, in an action or proceeding pending therein." [CCP §128(a)(4).] Code Civ. Proc. §2023.030(d)(1) provides, "The court may impose a terminating sanction by... An order striking out the pleadings or parts of the pleadings of any party engaging in the misuse of the discovery process." [CCP §2023.030(d)(1).] Code Civ. Proc. §2023.030(d)(4) provides, "The court may impose a terminating sanction by... An